Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1177
Claimant:	Anthony Hernandez
Adjuster:	Darin Tyler

14 Aug 2023
First notice of loss received for a sideswipe that occurred while the insured was changing lanes. The claimant is represented by counsel, and all further contact will be routed through the attorney's office.

11 Sep 2023
Reviewed the photographs submitted with the claim. They confirm several details of the scene and the position of the vehicles, though no independent witnesses have come forward to describe the collision.

9 Oct 2023
Vehicle damage on the claimant's side is consistent with the impact described in the report. The estimate lines up with the damage pattern shown in the photos, and no earlier damage to the vehicle is known from our records.

6 Nov 2023
Police report conifrms the claimant was in the vehicle at the time of the collision. The driver is named on the policy, and nothing in the file suggests the damage occurred before the coverage period began.

23 Nov 2023
Claimant repotrs a knee injury from the crash. The injury fits the type and force of the collision, and no prior injury to the same area is known from the claimant's history.

28 Nov 2023
Claimant has given the same account of the collision in every conversation so far, including through counsel. Medical records show treatment followed a usual course and tapered off as the claimant improved.

16 Jan 2024
Recommend the file proceed to settlement review based on the documented damage, consistent medical treatment, and the policy being in force at the time of loss. Counsel to be advised of the reserve and next steps.

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Bodily Injury Unit

Recorded Statement

Claim number:	C-1177
Statement of:	Anthony Hernandez
Taken by:	Darin Tyler
Date:	10 Jun 2023

Q: Thank you for taking the time to give this recorded statement. Please state your full name for the record.

A: I'd rather just keep it to the accident and my knee, if that's okay.

Q: That's fine. We'll keep it to the accident. Can you describe where the collision happened?

A: It was on a multi-lane road in Katy, Texas. I was moving over one lane to get to the exit ramp when another vehicle came up alongside me and we scraped sides.

Q: What were you doing right before the contact?

A: I had checked my mirror and saw the lane looked clear. I signaled and started to move over. I felt a bump and heard metal scraping.

Q: Did the other driver say anything or stop?

A: They slowed down, then kept going for a bit before pulling onto the shoulder. We both ended up stopped there.

Q: Were you hurt at the scene?

A: My knee hit the steering column when the car jolted. It hurt right away, but I didn't think it was serious at first.

Q: Have you seen a doctor since then?

A: Yes, I went to urgent care the same day and then saw an orthopedic provider a few days later. They mentioned possible ligament strain and ordered imaging.

Q: Are you still having symptoms?

A: Yes. Stairs are difficult, and my knee swells by the end of the day. I've been using a brace and taking it easy at work.

Q: Is there anything you'd like to add about the accident?

A: Only that I was trying to be careful. I'd like the claim handled so I can get my treatment covered.

Q: Thank you. That concludes the statement.

A: Thanks.